

Exhibit A

Jurisdictional Analysis of AEP Ohio Data Center Tariff

AEP OHIO DATA CENTER TARIFF¹

Provisions that remain subject to state authority: ²	Provisions that would fall under Commission jurisdiction:
• MW threshold governing the tariff, including grandfathering provisions and provisions related to aggregating demand of multiple facilities • Load ramping requirements • Minimum term for retail electric service contract • Rates for retail electric service • Provisions regarding minimum monthly retail service charges • Methodology for determining billing demand • Contract termination requirements and limitations, including notice provisions and exit fees • Provision stating that AEP Ohio is not required to supply capacity in excess of the contract capacity • Site control requirements for load facilities • Provisions for modifying the amount of contract capacity • Retail metering requirements and provisions • Billing provisions and charges for late payments • Terms regarding commencement and suspension of retail service • Applicability of state commission-approved riders for demand metered commercial and industrial service • Generation service offered to customers (e.g., standard offer service or competitive service)	• Provisions governing behind-the-meter generation, <i>to the extent they involve transmission-level interconnections</i> • Provisions allowing AEP Ohio to require a customer to enter into an agreement for network or customer-specific investment or Contribution in Aid of Construction agreement for customer-specific investment, <i>to the extent it refers to transmission investments</i> • The applicable rate for unbundled retail transmission service

¹ The below analysis considers Commission jurisdiction for the purposes of FPA sections 205 and 206. This analysis assumes the Ohio Data Center Tariff uses the term “contract capacity” to refer specifically to the MW quantity of the customer’s load that receives retail electric service. *See* Ohio Power Company, SCHEDULE DCT, Original Sheet No. 223-1 (defining “contract capacity” to mean “the mutually agreed amount of monthly peak load . . . whereby the Company agrees to provide all of the components of retail electric service . . . [.]”).

² The items in this column represent aspects of the AEP Ohio Data Center Tariff that—based on Vistra’s understanding of that tariff and current FERC regulations, policy, and precedent—Vistra believes could remain within Ohio’s authority. It is possible that aspects of the AEP Ohio Data Center Tariff could be applied in ways that intrude on or interfere with FERC-jurisdictional requirements, including NERC reliability standards.

• Collateral requirements, including the form and amount of collateral • Limits on how the load will operate (e.g., not cycling load in ways that negatively impact system frequency) • Load customer's ability to offset contract capacity with behind-the-meter generation, to the extent it refers to distribution-level configurations or fully isolated, intra-state transmission facilities • AEP Ohio's ability to disconnect or curtail load in accordance with the terms and conditions in its tariff and the Ohio Administrative Code • Attestation that neither the customer nor its parents or affiliates are affiliated with or acting on behalf of a foreign adversary	
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Exhibit A

Attachment A

AEP Ohio Data Center Tariff Strikethrough

This attachment includes the version of AEP Ohio's Data Center Tariff that AEP Ohio submitted on compliance to the Public Utilities Commission of Ohio on July 11, 2025. For illustrative purposes, the below redline strikes the provisions of the Data Center Tariff that would come within the Commission's jurisdiction under Vistra's theory of jurisdiction. The strikethroughs represent aspects of the AEP Ohio Data Center Tariff that—based on Vistra's understanding of that tariff and current FERC regulations, policy, and precedent—Vistra believes would fall within the Commission's jurisdiction. It is possible that other provisions of the AEP Ohio Data Center Tariff could be applied in ways that intrude on or interfere with FERC-jurisdictional requirements.

P.U.C.O. NO. 21

SCHEDULE DCT
(Data Center Tariff)Definitions

For purposes of this schedule:

"Contract" means the service agreement entered into by the customer and the Company in accordance with this schedule.

"Contract Capacity" means the mutually agreed amount of monthly peak load requirements for each month during the remaining term after the Load Ramp Period as set forth in the contract for service, whereby the Company agrees to provide all of the components of retail electric service (which could include either default SSO supply or access to CRES provider supply of generation service) subject to the terms and conditions in its tariffs and the customer agrees to purchase service at that level for the stated term of the contract under the same terms and conditions."

"Data Center" means a centralized facility (a) used primarily or exclusively for electronic information services such as the management, storage, processing, and dissemination of electronic data and information through the use of computer systems, servers, networking equipment, and related components that (b) has an aggregate monthly maximum demand of greater than 25,000 kW. Unless otherwise specified, the term "Data Center" shall include "Mobile Data Center."

"Mobile Data Center" means a centralized facility (a) used primarily or exclusively for electronic information services such as the management, storage, processing, and dissemination of electronic data and information (including mining of cryptocurrency) through the use of computer systems, servers, networking equipment, and related components that (b) has an aggregate monthly maximum demand of greater than 25,000 kW and has load that is portable and/or distributable, including but not limited to structures that are not affixed to the ground or are easily removed from a location.

"Single Location" refers to an area that is owned, operated, or leased by the Data Center customer with the metering point for the customer's metering point. A contiguous lot (or lots) to the area with the customer's metering point may be considered the customer's premises regardless of easements, public thoroughfares, transportation rights-of-way, or utility rights-of-way, so long as it would not create an unsafe or hazardous condition.

"Load Ramp Contract Capacity" means the mutually agreed monthly peak load requirements associated with the Load Ramp Period. The Load Ramp Contract Capacity shall not be less than:

- In Year 1, 50% of Contract Capacity.
- In Year 2, 65% of Contract Capacity.
- In Year 3, 80% of Contract Capacity.
- In Year 4, 90% of Contract Capacity.

"Load Ramp Period" refers to the time of commencement of service until the customer reaches full contract capacity, which shall not exceed four years.

"Existing Load" means Data Center load for which a letter of agreement or electric service agreement has already been signed by the effective date of Schedule DCT.

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SCHEDULE DCT
(Data Center Tariff)

"New Load" means Data Center load for which a letter of agreement or electric service agreement has not been signed before the effective date of Schedule DCT.

Availability of Service

Service pursuant to this schedule is available for general service to customers that operate a Data Center that will use, within the initial contract term, a monthly maximum demand of greater than 25,000 kW at a Single Location or an aggregated Total Customer Contract Capacity in Service Territory of greater than 25,000 kW as described below.

Customers qualifying for this schedule that execute an electric service agreement with the Company or expand their current contracted capacity after the effective date of this tariff are required to take service under this schedule and will not be permitted to take service under other general service tariffs.

Schedule DCT does not apply to Existing Load above 25,000 kW that has already signed a letter of agreement or electric service agreement by the effective date of Schedule DCT, so long as the Existing Load does not expand by more than 25,000 kW above the contracted capacity under the existing electric service agreement following the effective date of Schedule DCT. Schedule DCT will apply to an Existing Load that signs a new electric service agreement to expand its Existing Load by more than 25,000 kW of New Load above the contract capacity under the existing electric service agreement after the effective date of Schedule DCT. At the customer's request, AEP Ohio will use reasonable efforts to separately meter the New Load to which Schedule DCT applies, but it may not be technically feasible to do so. If it is technically feasible to separately meter, the customer will pay all costs reasonably incurred by AEP Ohio to complete such separate metering. If the load is not separately metered, then the Existing Load will lose its Existing Load status and become subject to Schedule DCT.

If the customer facility operates one or more Data Centers with a monthly maximum demand of greater than 25,000 kW and has non-Data Center load (that would otherwise be billed under the General Service or other applicable Schedule) at a Single Location, Schedule DCT will apply to all electric distribution service to that customer, provided, however, that the customer shall have the option of separately metering its Data Center and non-Data Center loads (if technically feasible) and paying for those loads through separate customer accounts. In such situation, the customer shall be responsible for all metering and other costs necessary to separate its load into separate customer accounts.

The terms and conditions of service under this this schedule shall apply upon a request for service by an eligible customer but service to customers under this schedule will not commence until the Company has sufficient capacity to meet the contractual load requirements.

With Commission approval, service to a Schedule DCT customer may be suspended by AEP Ohio if customer usage exceeds its Contract Capacity by more than 1,000 kW. If the Company determines that additional capacity is available from AEP Ohio to serve additional load at the customer site, the Company may also seek mutual agreement to adjust the Contract Capacity and reserves the right to raise the issue before the Commission if there is no agreement.

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SCHEDULE DCT
(Data Center Tariff)Monthly Rate

Schedule Code	Service Voltage	Distribution Demand Charge (\$/kW)	Excess Reactive Demand (\$/kVA)	Customer Charge (\$)
###296,796	Secondary	\$7.01	\$1.25	\$9.40
###295,795	Primary	\$6.33	\$1.21	\$138.50

Schedule Code	Service Voltage	Distribution Demand Charge (\$/kW)	Excess Reactive Demand* (\$/kVAR)	Customer Charge (\$)
###297,797	Transmission	--	\$0.70	\$3,600

*For each kVAR of reactive demand, leading or lagging, in excess of 50% of the kW metered demand.

Minimum Charges

The minimum monthly charge under this schedule shall be the sum of the customer charge, the product of the distribution demand charge and the monthly distribution billing demand, and all Commission-approved riders shown on Sheet Number 104-1.

Monthly Billing Demand

Billing demand in kW shall be taken each month as the single highest 30-minute integrated peak in kW as registered during the month by a 30-minute integrating demand meter or indicator, or at the Company's option, as the highest registration of a thermal-type demand meter. The customer will have no more than the Load Ramp Period to reach full contract capacity, during which time monthly billing demand shall not be less than 85% of the customer's Load Ramp Contract Capacity. After the Load Ramp Period, monthly billing demand established hereunder shall not be less than the greater of (a) 85% of the customer's highest previously established monthly billing demand during the past 11 months or (b) the customer's "Minimum Demand" as set forth below:

Total Customer Contract Capacity in Service Territory	Minimum Demand
25,001 kW to 75,000 kW	15,000 kW plus 85% of marginal amount over 25,000 kW
75,001 kW and above	57,500 kW plus 100% of marginal amount over 75,000 kW; provided, however, that the minimum demand will not exceed 85% of the total contract capacity.

All New Loads of affiliated companies and companies with common ownership greater than 25,000 kW will be considered in the aggregate for purposes of determining the "Total Customer Contract Capacity in Service Territory"

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(Data Center Tariff)

and calculating the "Minimum Demand" in the chart above that will be included for the full term of each Contract for New Load under this Schedule DCT. Existing Load will not be considered as part of the "Total Customer Contract Capacity in Service Territory." All affiliated New Load will be stacked in order of the energization date so the Minimum Demand can be applied based on multiple Contracts, as applicable. If there are multiple New Loads at a Single Location of less than 25,000 kW (but the aggregate total load is greater than 25,000 kW), all of those New Loads will be subject to Schedule DCT.

Unless otherwise mutually agreed by the Company and the customer, the customer shall be billed under the provisions of this tariff using the Contract Capacity during all months of the initial term of contract should the customer fail to energize service. The monthly billing demand defined hereunder shall apply for purposes of billing under all applicable riders, regardless of any conflicting provision in the rider.

Delayed Payment Charge

Bills are due and payable in full by mail, checkless payment plan, electronic payment plan or at an authorized payment agent of the Company within 21 days after the mailing of the bill. On all accounts not paid by the due date, an additional charge of 2.5% of the unpaid balance will be due.

Applicable Riders

Monthly Charges computed under this schedule shall be adjusted in accordance with the Commission-approved riders on Sheet Number 104-1 that apply to Demand Metered commercial and industrial service. Nothing in this tariff excepts eligible customers from other riders or applicable tariffs.

Generation Service

Customers receiving service under this schedule may select competitive service from a CRES Provider or Standard Offer Service. The Company requires that Company-owned metering be installed to monitor the customer's load.

Transmission Service

~~Customers receiving service under this schedule shall pay the charges established for Demand Metered Service under the Basic Transmission Cost Rider ("BTCR"). New Loads receiving service under this schedule are not eligible to participate in the 1CP or 6CP BTCR Programs or any successor programs.~~

Terms of Contract

Contracts under the Schedule shall be made for an initial period of not less than the Load Ramp Period plus 8 years. By way of example, the initial period of a Contract for a Data Center with a 4-year Load Ramp Period will be 12 years. If electric infrastructure is not in place to serve the customer by the Contract's estimated in-service date, the customer may petition the Commission for an adjustment to the contract term based on the facts and circumstances presented at that time (but will otherwise remain the Load Ramp Period plus 8 years).

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After the initial term, Contracts shall remain in effect unless terminated by either party by providing written notice to the other party no later than three (3) years prior to the requested date of termination. After the initial term, either party may request a modification to the Contract Capacity by providing written notice to the other party no later than three (3) years prior to the requested modification date. During the initial term of the Contract, the customer will be financially responsible to pay the minimum charges regardless of the customer choosing to curtail, reduce, suspend, or terminate service. If after completion of the fifth year of the Contract after the Load Ramp Period the customer chooses to pay an exit fee equal to minimum charges for 36 months after notice of termination, the customer can thereafter terminate the contract. By way of example, a customer with a 3-year Load Ramp Period may pay the exit fee and terminate the contract only after Year 8 of the Contract.

The customer shall agree with the Company in advance its Load Ramp Contract Capacity and a final Contract Capacity value to be used for the remaining initial term of the contract. A new contract will be required for any load additions in excess of 100 kW.

The Company shall not be required to supply capacity in excess of the Contract Capacity except by mutual agreement.

~~Nothing in this Schedule limits the requirement that a customer sign a Letter of Agreement for network and customer specific investment prior to energization or Contribution in Aid of Construction agreement for customer-specific investment.~~

To sign a contract under this Schedule, the customer must designate a specific site at which its Data Center project will be constructed and served by the Company, and the customer must own or have the exclusive right to use the land for this purpose.

Collateral Requirement

For purposes of the collateral requirement under this section, "customer" shall include both the customer and the customer's financial sponsor as long as the sponsor is a co-signer on the contract with AEP Ohio. The customer, if not having both (a) a credit rating of at least A- from S&P Global Inc. ("S&P") and A3 from Moody's Corporation ("Moody's") and (b) cash and cash equivalents on an audited balance sheet prepared in accordance with Generally Accepted Accounting Principles ("GAAP") ("Liquidity") greater than ten times the Collateral Requirement, must provide a guarantee or collateral at the time of signing the contract equal to 50% of the total minimum charges for the full term of the contract ("Collateral Requirement"), calculated based on AEP Ohio's rates in effect at the time the Collateral Requirement is provided. The Collateral Requirement must be provided in one or more of the following forms:

1. A guarantee from the ultimate parent or a corporate affiliate of the customer for the full Collateral Requirement, so long as the guarantor has both (a) a credit rating of at least A- from S&P and A3 from Moody's and (b) Liquidity greater than ten times the Collateral Requirement; or
2. A standby irrevocable letter of credit ("Letter of Credit") for the full Collateral Requirement. The Letter of Credit must be issued by a U.S. bank or the U.S. branch of a foreign bank, which is not affiliated with the customer or its guarantor, with a Credit Rating of at least A- from S&P and A3 from Moody's. Such security

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must be issued for a minimum term of 360 days. The customer must cause the renewal or extension of the security for additional consecutive terms of 360 days or more no later than 30 days prior to each expiration date of the security. If the security is not renewed or extended as required herein, the Company will have the right to draw immediately upon the Letter of Credit and be entitled to hold the amounts so drawn as security. The Letter of Credit must be in a format acceptable to and approved by the Company.

3. Cash for the full Collateral Requirement.

The amount of the Collateral Requirement will be reduced by one year's minimum charges for each year the customer is energized and makes on-time electric service payments under the contract.

If the financial condition of the customer or guarantor changes – or market conditions (including ownership/structural changes) change – over the term of the contract, the Company may request updated information to reevaluate the customer and its collateral requirements, which may be adjusted accordingly.

Customer-Owned Generation and Emergency Conditions

~~Consistent with Ohio Administrative Code Chapter 4901:1-22, Schedule DCT Customers shall enter into an interconnection agreement between the Company and the Customer in advance of connecting any source of power other than the delivery point specified in the Contract.~~ Emergency or backup generation that is not designed to operate in parallel with the Company's system is not subject to the additional requirements in this section.

With Commission approval, service to any customer using behind-the-meter generation to serve some or all of its demand that elects not to offset its Contract Capacity with output from its behind-the-meter generation may be suspended by AEP Ohio if customer usage exceeds its Contract Capacity by more than 1,000 kW.

~~If the customer elects to use its behind the meter generation to offset the customer's Contract Capacity (either in initially establishing service or in the context of a subsequent load expansion or behind the meter generation expansion at the same site, as reflected in a new or updated Contract Capacity), the following requirements will apply. In order to ensure that the Customer's election to net does not result in it exceeding its Contract Capacity, equipment must be in place and maintained through the term of the Electric Service Agreement to instantaneously curtail load equal to or greater than the behind the meter generation output, subject to the then current technical requirements of the transmission provider. If the equipment fails and results in the customer exceeding its Contract Capacity, the Company reserves the right to raise before the Commission any unresolved reliability or safety concerns based on the facts and circumstances presented at that time.~~

Nothing in this paragraph affects AEP Ohio's right to disconnect or curtail load in accordance with Section 26 of the Terms and Conditions of Service in the Company's tariff and Ohio Administrative Code 4901:110-16.

Special Terms and Conditions

This schedule is subject to the Company's Terms and Conditions of Service.

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Customers served under this tariff agree to written attestation as part of its Contract that the customer will follow all applicable technical operating requirements, such as not intentionally or unintentionally cycling load in a way that creates an imbalanced or unacceptable system frequency, and other requirements that will be maintained and periodically updated for the safety of the larger system. Upon detection of any activities outside of the technical requirements, the Company has the right to disconnect.

With Commission approval, service may be suspended by AEP Ohio to a customer under Schedule DCT (including a customer with behind-the-meter generation that has elected not to net its Contract Capacity) if the customer usage exceeds its Contract Capacity by more than 1,000 kW. If additional capacity is available at the customer site, the Company may also seek mutual agreement to adjust the Contract Capacity and reserves the right to raise the issue before the Commission if there is no resolution. Nothing in this paragraph affects the provision above regarding behind the-meter generation or is intended to preclude the Company from disconnecting service or curtailing load to a Schedule DCT customer without Commission approval in accordance with Section 26 of the Terms and Conditions of Service in the Company's tariff and Ohio Administrative Code 4901:1-10-16.

Prior to receiving service, Mobile Data Center customers will be required to provide a sworn statement, under penalty of perjury, that neither the customer nor its corporate parent or affiliates are affiliated with or acting on behalf of any foreign adversary as defined in 15 C.F.R. § 7.4. If AEP Ohio has a good faith belief that a Mobile Data Center customer has provided false information in response to this requirement, AEP Ohio has the right to immediately disconnect service to the Mobile Data Center permanently or until adequate proof is shown to satisfy AEP Ohio that the Mobile Data Center customer meets this requirement.

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